

Auditable Flourishing v6.2 Legal, Rights, and Authorization Note

Status and legal non-claim

This note clarifies how the protocol routes rights, proportionality, emergency, authority, and deployment questions. It is not legal advice, a jurisdiction-specific legal test, a substitute court or regulator, or authorization to use a candidate framework. Applicable law, constitutional order, treaty obligations, institutional authority, and affected-party rights govern real cases.

Table of Contents

Auditable Flourishing v6.2 Legal, Rights, and Authorization Note

Status and legal non-claim

1. Rights outside ordinary aggregation

2. Required rights-routing record

2.1 Floor adequacy and principled non-equivalence

3. Rights-floor operationalization

3.1 Boolean rights-floor isolation

3.2 Legal proportionality, derogation, and rights-floor taxonomy for protocol review

3.3 Regional derogation regimes, margin of appreciation, and transjurisdictional contestation · 4

3.4 Non-refoulement and protections against transfer to serious harm · 4

3.5 Worked floor-conflict example · 4

4. Emergency exceptions · 5

4.1 Exceptional provisional action record · 5

4.2 Renewal, recurrence, and anti-stacking control · 5

5. Admissibility, selectability, and authorization · 6

5.1 Authority-specific verdict vector · 6

5.2 Sponsor, procurement, and business-responsibility layer · 6

5.3 Anti-shield and characterization rule · 6

6. Affected-party standing and redress · 7

7. Protocol refusal · 7

8. Protocol amendment, rights representation, and succession · 7

8.1 Constitutional amendment safeguards · 7

Manifest-scoped attestation boundary · 8

References · 8

1. Rights outside ordinary aggregation

Protected rights and basic floors are not ordinary Stage B benefits that can be compensated by aggregate gains. When a candidate identifies a possible rights limitation, derogation, emergency exception, or conflict among rights, ordinary profile comparison pauses and the matter routes to competent legal, rights, authority, and affected-party processes. The protocol assesses whether the route is explicit, reasoned, reviewable, time-bounded where applicable, and paired with remedy; it does not mechanically decide legality.

2. Required rights-routing record

A rights-sensitive Decision Note should identify the affected right or floor, claimant or affected group, legal or normative source, decision authority, factual basis, necessity, less restrictive alternatives, proportionality or

conflict rationale where legally applicable, duration, review trigger, independent oversight, remedy, redress, and termination conditions. Confidentiality must not conceal the existence of the limitation or prevent competent review.

2.1 Floor adequacy and principled non-equivalence

C1 is not satisfied by disclosure of a strategically thin floor set. For scopes materially affecting persons or communities, the candidate maps its floor protections to applicable law and to the core protocol's rebuttable reference baseline: ICCPR Article 4(2), the broader safeguards identified in Human Rights Committee General Comment No. 29, and minimum essential levels under the ICESCR framework. The baseline is used because it is public, contestable, transjurisdictionally legible, connected to established legal and rights practice, and useful as a rebuttable burden of explanation. It is not an exhaustive universal bill of rights, a complete moral theory, a substitute for applicable local law, an automatic hierarchy over Indigenous, customary, religious, or community governance, or proof that every provision is culturally or institutionally sufficient.

A customary, Indigenous, religious, community, or other architecture may establish a principled non-equivalence rather than copy these instruments. It must show functionally equal or stronger protection for affected persons and groups through independent rights competence and affected-party participation appropriate to the scope. Rebuttal is bilateral: a candidate, affected party, or independent reviewer may challenge the adequacy of the reference baseline itself for the declared scope. The disposition requires independent rights competence, participation appropriate to the stakes, public reasons, preserved dissent, a remedy or revision route, no strategic thinning of floors, and no acceptance of formal rights without usable remedy. A community process neither passes merely because it is culturally distinctive nor fails merely because it uses different legal vocabulary. A floor below applicable legal or minimum protection without a defensible equivalent is C1-D03; insufficient evidence yields Indeterminate rather than an assumed defect.

Applicable legal validity, scoped AF admissibility, affected-party legitimacy, broader moral justification, and deployment authorization are separate statuses. No one of them establishes the others.

3. Rights-floor operationalization

3.1 Boolean rights-floor isolation

Rights floors must reside in a mathematically isolated layer. They are not inputs to aggregate wellbeing scores. If a candidate action breaches a protected floor, the action is inadmissible unless a narrowly governed emergency exception applies. In formal terms, rights-floor breach returns FALSE for ordinary admissibility and routes the option to rejection, redesign, rights-conflict review, exceptional-provisional governance, or refusal, as applicable. A protected-floor breach is never represented as a finite compensable loss within ordinary optimization. This is the main defense against scalarization, where severe harm to a protected group is hidden by large gains elsewhere.

Candidate frameworks must disclose where local legal compliance falls below the protocol's declared rights floor. Legal permissibility alone does not satisfy Stage A if the framework's own floor commitments are weaker than the protocol requires.

This Boolean isolation rule does not deny that many legal systems use proportionality analysis when rights conflict or when limits on rights are claimed to serve legitimate aims. The protocol acknowledges that proportionality is a serious constitutional tradition (Alexy, 2002; Tsakyrakis, 2009; Webber, 2009). Its narrower methodological choice is that, for a framework seeking authority to guide flourishing claims, rights-floor breach must first trigger inadmissibility, emergency governance, or rights-conflict review outside ordinary welfare scoring. This prevents severe rights injury from being hidden inside a favorable aggregate profile.

In formal sections, the Boolean predicate is a routing rule rather than a claim that rights adjudication is mechanical. A FALSE value means the option cannot proceed through ordinary welfare ranking. It must be rejected, redesigned, routed to rights-conflict review, or handled through a narrowly governed emergency or limitation procedure where the relevant legal-normative category permits it. The predicate therefore protects the

non-compensation structure while leaving substantive proportionality, derogation, and floor-conflict analysis outside the aggregate scoring layer.

3.2 Legal proportionality, derogation, and rights-floor taxonomy for protocol review

For protocol purposes, rights-floor analysis distinguishes four legal-normative categories. First, absolute or non-derogable protections cannot be overridden by ordinary welfare scoring. Second, qualified rights may be subject to lawful, necessary, proportionate, non-discriminatory, and reviewable limitations. Third, socio-economic minimum floors require disclosed treatment of minimum core obligations, resource constraints, progressive realization, and non-retrogression where applicable. Fourth, emergency derogations require formal legal basis, necessity, temporariness, scope limitation, independent review, non-discrimination, redress, and sunset. Limitation and derogation claims should be interpreted with attention to the Siracusa Principles and comparable constitutional/human-rights doctrines where applicable (United Nations Economic and Social Council, 1985).

A valid legal limitation may still fail this protocol if it is unreplayable, unauditable, hidden, non-contestable, or folded into aggregate welfare scoring without rights-conflict review. Conversely, protocol failure is not automatically a court judgment. It means the framework is not admissible for flourishing-comparison authority under this protocol until the defect is repaired or the claim is narrowed.

The Boolean rights-floor rule is a protocol-design rule, not a claim that courts, legislatures, or administrative bodies never engage in structured balancing. Many legal systems analyze rights through questions of scope, lawful limitation, necessity, proportionality, derogation during emergency, and remedy. Auditable Flourishing does not abolish those doctrines. It asks a narrower methodological question: should a candidate framework be admitted to a flourishing comparison if severe rights injury can be hidden inside welfare aggregation?

The answer is no. When a rights-floor risk appears, the ordinary welfare-scoring pathway must pause. The case must move to rights-conflict review, emergency-exception governance, lawful authorization review, or refusal. If legal authority permits a limitation, the framework still must document the legal basis, affected right, least-restrictive alternatives considered, proportionality rationale where applicable, time limit, oversight body, redress path, monitoring trigger, and post hoc review requirement.

A protocol-admissible framework can still be unauthorized for real deployment. A legally permissible institutional action can still be protocol-inadmissible for comparison if it lacks inspectability, redress, auditability, or refusal discipline. This double boundary protects the paper from two errors: treating the protocol as law, and treating positive law as sufficient proof of flourishing safety.

Table 1. Legal status, protocol status, and required evidence remain distinct.

Situation	Legal status question	Protocol status question	Required record
Rights limitation claimed	Is there lawful authority, necessity, proportionality, and remedy?	Does ordinary welfare comparison pause and route to rights-conflict or authorization review?	Legal basis, affected right, alternatives, proportionality rationale, redress, monitoring.
Emergency exception claimed	Is emergency power valid, time-bound, and reviewable?	Is the exception formally triggered, scope-limited, logged, independently reviewed, and paired with redress?	Trigger, scope, duration, reviewer, affected groups, sunset, post hoc repair.

Situation	Legal status question	Protocol status question	Required record
Local law permit s action	Does positive law authorize it?	Does the action still meet open-core, rights, audit, measurement, update, and refusal gates?	Legal compliance note plus Stage A evidence.
Framework select s an option	Can the institution lawfully execute?	Does selectability remain separate from authorization?	Decision note separating recommendation, legal authority, and execution boundary.

3.3 Regional derogation regimes, margin of appreciation, and transjurisdictional contestation

The ICCPR is not the only governing regime. Where applicable, a rights-routing record must identify regional constitutional or treaty rules, including Article 15 of the European Convention on Human Rights and Article 27 of the American Convention on Human Rights. These regimes differ in text, institutional practice, notice, review, and non-derogable protections. A generic reference to “emergency powers” is not an adequate legal basis.

The European margin-of-appreciation doctrine can affect how an international court reviews national choices, but it is not a licence for the protocol, host, or candidate to lower a rights floor silently. A candidate invoking national discretion records the exact authority, the right and scope affected, the quality of domestic deliberation, necessity and alternatives, non-discrimination, review, remedy, and the doctrine’s limits. The protocol treats the doctrine as a reason for jurisdiction-specific competent review and preserved contestation, not as a universal waiver.

A transjurisdictional reference baseline remains rebuttable. Where a regional, constitutional, Indigenous, customary, or community rule provides stronger protection, the stronger applicable protection is not discarded merely for uniformity. Where rules conflict, the record identifies the conflict, authority, standing, and route to a competent determination. AF does not adjudicate the conflict itself.

3.4 Non-refoulement and protections against transfer to serious harm

Non-refoulement must be named rather than hidden inside a generic rights list. Article 3 of the Convention against Torture prohibits transfer where there are substantial grounds for believing a person would be in danger of torture. Article 33 of the Refugee Convention supplies a distinct refugee-law rule, subject to its own text and jurisprudence. Other international and regional protections may also apply.

For migration, asylum, extradition, removal, data-sharing, or cross-border decision systems, the candidate records destination risk, individualized evidence, uncertainty, access to counsel or assistance, notice, review, suspensive remedy where required, authority, and the effect of automation or triage. A favorable aggregate welfare or fraud-control benefit cannot compensate for a serious non-refoulement risk. Insufficient evidence produces indeterminacy, protective pause, or referral to competent authority; it does not support silent transfer.

3.5 Worked floor-conflict example

A public-health agency considers publishing granular outbreak-location data to protect life and health. The disclosure may help exposed communities avoid harm, but it also risks privacy injury, stigmatization, and retaliation against a small subgroup. Under the protocol, this is not solved by assigning a positive aggregate score to life protection and a smaller negative score to privacy. Both interests sit at the floor layer. The decision must first enter rights-conflict review: identify the affected rights and groups, test necessity and least-restrictive alternatives, minimize data release, apply cell suppression or differential privacy where feasible, time-limit the publication, create appeal and correction pathways, and log the basis for the choice. Only the floor-preserving or legally justified limited option may then enter ordinary comparison. This illustrates the core rule: rights conflicts are routed and governed before welfare ranking; they are not averaged away.

4. Emergency exceptions

Emergency exceptions are allowed only when formally triggered, scope-limited, time-bound, logged, independently reviewed, and paired with post hoc redress. An emergency channel without these safeguards is a rights bypass channel and fails C1.

Emergency-exception register. Every emergency use must record: trigger, legal or institutional authority, affected rights, affected groups, expected benefit, least-restrictive alternatives considered, duration, renewal rule, independent reviewer, public-reporting limit, redress mechanism, sunset date, and post hoc review result. An emergency channel without these fields remains a rights-bypass channel and fails C1.

4.1 Exceptional provisional action record

Version 6.2 does not use EXCEPTIONAL_SCOPED_PASS as a Stage A status. A rights limitation or emergency derogation may, under competent external law and authority, produce a distinct operational record: Exceptional provisional action asserted. This record is outside ordinary AF eligibility and cannot be used as evidence that the candidate's normal operation is rights-safe.

Table 2. Minimum exceptional-provisional-action record.

Field	Required content
Legal and authority basis	jurisdiction, competent body, instrument, decision maker, reviewability
Trigger and necessity	emergency facts, evidence quality, why ordinary process is insufficient
Rights and affected groups	rights limited, groups exposed, differential and cumulative effects
Alternatives	least-restrictive alternatives considered and reasons rejected
Scope and duration	geographic, functional, population, data, and time limits
Safeguards	independent review, monitoring, mitigation, data minimization, access control
Redress and repair	notice, challenge, remedy, compensation or restoration where applicable
Sunset and post-hoc review	expiry, renewal conditions, retrospective review, lessons and patch obligations

The protocol may assess whether these fields are present, coherent, and challengeable. It does not determine that the exception is legally valid or morally sufficient.

4.2 Renewal, recurrence, and anti-stacking control

Emergency language is a known route for converting a temporary exception into a standing rights bypass. Every exceptional-provisional-action record must therefore include a renewal count, cumulative duration, the underlying decision or condition to which it relates, and a predeclared escalation rule. A renewal is not a new clock: it must re-establish legal basis, necessity, proportionality where applicable, the continued absence of a less restrictive alternative, and the continuing validity of safeguards and redress.

The first renewal requires independent rights review. Any predeclared cumulative-duration, recurrence, or material-change threshold requires escalation to a competent authority and suspension of ordinary AF eligibility claims. Multiple provisional actions that address the same underlying decision, population, data flow, or operational objective must be treated cumulatively even when they use different labels or instruments. They cannot be stacked, serially reissued, or reframed to reset the time boundary.

No universal duration or renewal count is encoded because lawful emergency periods and risk dynamics vary by jurisdiction and domain. The binding requirement is stricter in another sense: the limit and escalation consequence must be declared before use, justified against the stakes, and independently reviewable. Wrongful exclusion can itself create irreversible opportunity cost when delayed action would fail to prevent time-critical harm. The record therefore compares both admission-error and exclusion-error pathways and any safe stabilization option. This does not grant Stage-A admissibility: a temporary action remains separately authorized, bounded, reviewed, and cumulative under the anti-stacking rule. Failure to declare or enforce them is a C1 rights-bypass defect and is tested through the Rights-bypass probe in Core Table 15.

5. Admissibility, selectability, and authorization

Admissibility asks whether a framework may enter comparison under C0–C5. Selectability asks whether an option survives the framework’s own constraints. Authorization asks whether a legitimate institution, legal process, or affected community may use it in a specific setting. A positive answer to one does not establish the next.

A protocol host must not present AF eligibility as certification, procurement approval, legal compliance, professional competence, community consent, or permission to deploy. Real use may require statutory authority, judicial review, ethics approval, data-protection assessment, procurement controls, professional responsibility, accessibility, community engagement, safety certification, operational capacity, and continuing oversight.

5.1 Authority-specific verdict vector

The public record contains five independent components: AF eligibility, legal conformity, moral adequacy, community legitimacy, and deployment authorization. AF may issue only its own protocol-relative component. A court, regulator, tribunal, authorized counsel, or other competent authority supplies any legal finding. Affected communities and legitimate moral or deliberative processes supply their own findings. The operating authority alone supplies deployment authorization. Each component carries scope, evidence, date, expiry, conditions, and appeal. The generic status `approved` is prohibited.

5.2 Sponsor, procurement, and business-responsibility layer

A sponsor or procuring body remains responsible for its own legal and human-rights duties. The UN Guiding Principles on Business and Human Rights provide an internationally recognized framework for identifying, preventing, mitigating, tracking, and communicating human-rights impacts. An AF review may supply evidence to that process, but it does not replace human-rights due diligence, impact assessment, contractual controls, remedy, regulator duties, or board and professional responsibility.

The sponsor record identifies who commissioned AF, the decision it wishes to support, its financial and institutional interest, procurement or litigation exposure, preferred outcome, contractual control over the host, and whether it intends to cite AF as evidence of reasonable care. Undisclosed outcome interest or selective use of favorable parts is a host/sponsor capture signal.

5.3 Anti-shield and characterization rule

C0-D07 Downstream authority laundering applies when a bounded AF finding is cited as certification, legal compliance, due diligence, reasonable care, procurement approval, safety assurance, or permission without exact scope, conditions, expiry, dissent, appeal, and separate competent authority. Host duties continue after publication: material misuse triggers correction/withdrawal notice, public clarification, affected-party notice where appropriate, and reopening, restriction, or retirement if misuse persists.

An AF finding cannot function as a liability shield, due-diligence safe harbor, warranty, certification, procurement approval, legal opinion, or conclusive proof of reasonable care. Contract terms, procurement documents, board papers, regulatory submissions, or litigation materials that mention AF must reproduce the exact status, token, candidate version, scope, evidence cut-off, host, conditions, dissent, expiry, known limitations, appeals, and authority-specific verdict vector.

A party may not state or imply that AF:

- proves legal compliance or absence of negligence;
- establishes that actual flourishing occurred or harm was impossible;
- bars a claim, investigation, remedy, appeal, or later adverse evidence;
- transfers statutory, professional, fiduciary, procurement, or human-rights responsibility to the protocol or host;
- authorizes deployment or continued operation;
- cures a rights violation through documentation.

If a positive AF finding is used in a legal or procurement setting, the host supplies an anti-shield notice and a complete bounded record. Mischaracterization is C0-D05 scope and authority drift and can trigger correction, withdrawal, or public clarification.

6. Affected-party standing and redress

Rights protection includes practical standing to challenge, notice, accessible reasons, assistance where needed, non-retaliation, review by a competent body, and an effective remedy. Affected-party participation cannot cure absent legal authority, but legal authority alone does not establish legitimacy or adequate protection.

7. Protocol refusal

Auditable Flourishing must refuse or narrow a legal or rights-sensitive evaluation when jurisdiction is unclear, qualified legal or rights competence is absent, affected parties lack required standing, confidential evidence cannot be independently reviewed, emergency powers are undefined, a non-refoulement risk cannot be safely assessed, the sponsor or host seeks a predetermined legal or procurement conclusion, AI assistance exposes protected evidence or creates unreviewable legal analysis, or the host cannot separate protocol assessment from a legal determination.

8. Protocol amendment, rights representation, and succession

Neither the author nor a future steward may use an AF amendment to override applicable law, extinguish affected-party standing, or convert AF eligibility into legal authorization. A constitutional amendment affecting C1, rights-floor routing, emergency treatment, redress, refusal, or authorization requires independent rights and legal review, affected-party representation, a public impact statement, reasoned disposition of objections, transition safeguards, and a new major release.

Where stewardship is absent, captured, or disputed, the last signed and hash-pinned release remains the reference release and no successor may claim continuity without the public provenance and governance record required by the core. Forks remain permitted under the licence but must disclose that they are forks and may not imply canonical status.

8.1 Constitutional amendment safeguards

C0-C5 are proposed protocol criteria, not positive law or a universal moral constitution. Any amendment affecting rights-floor routing, emergency treatment, standing, redress, refusal, or authorization requires independent rights and legal review, affected-party representation, a public impact statement, rival formulations, reasoned disposition of objections, protected dissent, transition safeguards, and a new major release. Neither the author

nor a protocol steward may use an AF amendment to override applicable law, extinguish standing, lower a protected floor for convenience, or convert AF eligibility into legal authorization.

Manifest-scoped attestation boundary

Legal or authorization readers must not infer that an untracked manuscript excerpt inherits package-level format, figure, rendering, checksum, or verification claims. Those claims apply only to the exact version-matched artifacts identified by path and SHA-256 in the release records.

AF v6.2 synchronization note

This artifact implements the v6.2 three-axis record (decision_status, evidence_state, review_state), the non-erasure invariant, perturbation-replay anti-inflation and anti-suppression controls, and the separation of raw agreement, reliability, adjudication, and external validity. These controls clarify the existing protocol and do not confer legal, moral, procurement, or deployment authority.

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